

**CHAPTER cxxi.**

An Act to confirm a Scheme of the Charity Commissioners for the management of the Charity consisting of the Whitfield Tabernacle Schoolroom and trust property in the parish of Kingswood in the county of Gloucester.

A.D. 1907.

[9th August 1907.]

WHEREAS the Charity Commissioners for England and Wales in their report to His Majesty of their proceedings during the year one thousand nine hundred and six have reported that they have approved and certified a scheme for the management of the charity consisting of the Whitfield Tabernacle Schoolroom and trust property in the parish of Kingswood in the county of Gloucester comprised in the following indentures or certain of them an indenture of lease dated the thirteenth day of July one thousand eight hundred and two an indenture of appointment and bargain and sale dated the first day of October one thousand eight hundred and fourteen an indenture of assignment dated the twenty-first day of October one thousand eight hundred and fifty and an indenture of conveyance dated the eighth day of October one thousand eight hundred and fifty-nine:

And whereas it is expedient that the scheme as the same is fully set out and defined in the schedule to this Act should be confirmed:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The said scheme is hereby confirmed Provided always Confirmation that nothing in this Act or in the said scheme shall be held to of scheme.

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 Scheme Confirmation Act, 1907.

A.D. 1907. interfere with the ordinary jurisdiction over endowed charities
— now exerciseable or hereafter to become exerciseable by the High
 Court of Justice and the Charity Commissioners.

Short title. 2. This Act may be cited as the Kingswood Whitfield
 Tabernacle Scheme Confirmation Act 1907.

SCHEDULE.

A.D. 1907.

*Scheme for the Application or Management of the
Charity consisting of the Whitfield Tabernacle Schoolroom and
Trust Property in the Parish of Kingswood in the
County of Gloucester.*

1. The above-mentioned charity and the endowments thereof specified in the First Schedule hereto and all other the endowments (if any) of the said charity shall be administered and managed by a body of Trustees constituted as herein-after mentioned subject to and in conformity with the provisions of this scheme. Administration of charity.

2. The following persons shall be the first Trustees under this scheme:— First Trustees.

Alfred John Flook of Belgrave Kingswood provision dealer Samuel Day Wills of No. 113 Pembroke Road Clifton esquire John Henry Watling of No. 40 Broad Street chartered accountant Charles Goodleff of Bell Hill St. George cabinet-maker William Jennings of No. 1 Peter Street grocer William Cragg Oatway of No. 96 North Road secretary to shipbuilding company Henry Witts of No. 169 Cheltenham Road retired ironmonger Edward William Boulton Monks of Manor Cottage Frenchay coal merchant George Hare Leonard gentleman Alfred Munro ironfounder John Rossiter of Kingswood Hill bootmaker Frederick Brain of St. George boot manufacturer Ezra Buckland of No. 3 Victoria Street St. Paul's wood turner George Cross of Kingswood foreman George Maudslay Jackson of Redcliff silversmith Hubert Craymer Monks of Warmley accountant Andrew Ody of Warmley ironworks manager William Haskins of Bath Road Bridgegate Warmley earthenware manufacturer Edgar Albert Bodey of Kingswood schoolmaster William Henry Webb of Holly Hill Road Kingswood foreman George Burchill of New Cheltenham Kingswood farmer Sydney Joseph Rawbone of Hill Street Kingswood wheelwright Harry Edwards of Staple Hill contractor George Hosking Wicks of Belvedere Road produce broker George Herbert Oatley of Corn Street architect David Laing of Henleaze Gardens bank manager William George Williams of Fishponds accountant and Norman Wills of Castle Green manufacturer all in or near the city of Bristol.

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Vesting.

3. All the lands and hereditaments not being copyhold belonging to the charity shall forthwith vest in the said persons hereby constituted the first Trustees under this scheme their heirs executors administrators and assigns according to the legal nature of the premises.

User of chapel
and school
premises.

4. The Trustees shall permit the chapel and schoolroom belonging to the charity with the buildings used in connexion therewith to be used occupied and enjoyed as places for the public worship of God and for preaching the Gospel of the Lord Jesus Christ according to the principles and usages of Protestants of the Congregational Denomination (commonly called Independents) being Pædobaptists under the direction of the Christian Church for the time being assembling for worship in the said chapel and for the instruction of children and adults and for the promotion of such charitable purposes whether religious or philanthropic as the said church shall from time to time direct.

Officiating
minister.

5. The Trustees shall permit to officiate in the said buildings as stated minister or pastor of the said church such person or persons only as shall be of the denomination aforesaid and shall hold preach and maintain the doctrines set out in the Second Schedule hereto and shall be chosen and elected by a special resolution of the said church and no person shall be permitted to officiate as minister or pastor in the said buildings who shall be guilty of disgraceful conduct or shall cease to be of the denomination aforesaid or shall cease to hold and preach any of the said doctrines or be removed from his office by a special resolution of the said church. Provided always that in the event of any question arising between the church and the person for the time being officiating as such minister or pastor as aforesaid and the Trustees or between any or either of them as to whether such person has been guilty of disgraceful conduct as aforesaid or is of the denomination or is preaching and maintaining the doctrines aforesaid the same shall be referred to and conclusively determined by the decision of three arbitrators to be appointed by the chairman vice-chairman treasurer and secretary or secretaries for the time being of the local committee referred to in clause 14 hereof or by a majority of such persons. Provided that such appointment shall be made within three calendar months after due notice of reference has been served upon the said secretary or secretaries in writing signed by such minister or pastor or as regards the church by two of the deacons thereof or as regards the Trustees by two of their number and shall be evidenced by writing under the hands of the persons making the same and shall be notified within one calendar month of the date of such writing to the persons affected thereby or to such of them as the arbitrators or a majority of them deem to be entitled to such notification. A reference made and notified as aforesaid shall be deemed a submission to arbitration within the meaning of the Arbitration Act 1889.

Occasional
minister.

6. The Trustees shall permit such occasional ministers or other persons to officiate in the said buildings as the stated minister or pastor of the said church for the time being (if any) or if there be no such minister or

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pastor as the deacon or deacons of the said church for the time being or any committee from time to time appointed by the said church for the purpose shall appoint unless any such appointment shall be negatived by a resolution of the church. A.D. 1907.

7. The Trustees shall permit the dwelling-house specified in the said First Schedule and the garden held therewith to be used and occupied as a residence for the caretaker for the time being of the said chapel and the stable specified in the same schedule to be used and let as at present and shall subject to the restrictions imposed by law permit such part of the land specified in the said schedule as they shall think fit to be appropriated and used for the purposes of a burial ground or (as regards the said dwelling-house and garden and stable aforesaid and so much of the said land as may not be appropriated and used for the purposes of a burial ground) shall use or let the same or permit the same to be used or let respectively by the church for such purposes not inconsistent with the objects of the charity as declared by this scheme and on such terms as the said church shall think fit and the Trustees shall approve. User of caretaker's residence stable and burial ground.

8. The Trustees shall permit the deacon or deacons of the said church or other person or persons appointed for the purpose by the said church to receive all moneys contributed or subscribed and also the net rents arising from any lease or letting of property of the charity and any other money which may come to the hands of the Trustees in connexion with the premises in the nature of income and (after payment thereof of the expenses of repairing and insuring the premises and the interest of any mortgage or debt secured on the premises or incurred in the erection completion repair alteration enlargement or improvement of the said buildings and premises or of any buildings hereafter to be erected on the said piece of land) to pay such sum for the support of the minister or pastor of the said church as the said church shall have determined and to apply the remainder in payment of the incidental and other expenses attending the maintenance of divine worship on the said premises and for the other purposes of the charity as the said church shall direct. Provided nevertheless that moneys contributed or subscribed for any specified purpose shall not be subject to this clause but shall be applied for such specified purpose. Receipt and application of moneys by diaconate.

9. The Trustees shall from time to time under the direction of the church permit the buildings for the time being belonging to the charity to be repaired altered enlarged or taken down and rebuilt so as to render the same better adapted for the purposes aforesaid and shall under the like direction from time to time permit the erection of additional buildings. Repairs &c. to buildings.

10. Except as regards any property of the charity which for the time being is registered as a place of meeting for religious worship with the Registrar-General of Births Deaths and Marriages in England and is Restriction as to dealings with property.

A.D. 1907. bonâ fide used as a place of meeting for religious worship and except as regards such other property (if any) of the charity as for the time being by virtue of any provision of the Charitable Trusts Acts 1853 to 1894 is exempt from the operation of those Acts the Trustees shall not make or grant otherwise than with the approval of the Charity Commissioners any sale exchange mortgage or charge of the charity estate or any lease thereof in reversion after more than three years of any existing term or for any term of life or in consideration wholly or in part of any fine or for any term of years exceeding twenty-one years.

Restriction as to dealings with burial ground.

11. Any sale exchange mortgage charge or lease of the burial ground of the charity shall be subject to such stipulations respecting the user thereof as may be necessary or proper.

Trustees' discretionary powers to mortgage property.

12. Subject to the restrictions contained in the two last preceding clauses hereof it shall be lawful for the Trustees without the necessity of obtaining the consent of the church to raise by mortgage of the property of the charity or of part thereof or by a deposit of the title deeds thereof or of part thereof such sum or sums of money as in the exercise of their discretion they think proper for the purpose of paying off any debt or debts incurred or to be incurred in connexion with the application for and establishment of this scheme or in the erection or completion of the buildings erected or to be erected on the land of the charity and not provided for by voluntary subscriptions.

Trustees' obligation to deal with property in certain events.

13. Subject to the said restrictions herein-before contained the Trustees shall whenever required by a special resolution of the said church with the consent in writing of a majority of the Trustees consisting of not less than two-thirds of the Trustees for the time being sell mortgage or demise for any term of years the property of the charity or any part thereof or exchange the same or any part thereof for any other freehold copyhold customary or leasehold premises in accordance with the directions of the said church The Trustees shall stand possessed of the moneys arising from any such mortgage sale or exchange and any other moneys which may come to their hands in connexion with the trust premises in the nature of capital after paying all costs and expenses incurred in relation thereto upon trust to lay out and apply the same in or towards the erection completion repair alteration enlargement or improvement of the said buildings or in or towards the purchase of other premises of any tenure or towards any of the other purposes or objects of the charity in such manner as the said church shall by special resolution direct but so that any premises so purchased or so taken in exchange whether freehold copyhold customary or leasehold shall be situate within twenty miles of the premises now belonging to the charity and shall be held by the Trustees upon the same trusts and subject to the same powers and provisions as are herein declared concerning such premises If any difference shall arise as to whether moneys coming to the hands of

the Trustees are capital or income the decision of a majority of the Trustees shall be conclusive. A.D. 1907.

14. Notwithstanding anything herein-before contained if the said church is dissolved or dispersed or (save during such period as the powers of the church may be continued notwithstanding removal as provided by clause 23 hereof) if the regular public worship of God in the said chapel is discontinued for six calendar months together or if the number of the members of the said church entitled to vote at a special meeting as herein-after provided for shall be reduced to fifteen or under the Trustees may in their discretion but subject to the said restrictions herein-before contained either let or mortgage or sell the trust premises or any part thereof and pay and apply the net proceeds of such letting mortgage or sale remaining after payment of all expenses for such religious purposes not tending to the promulgation of doctrines inconsistent with those herein-before referred to and in such manner as the executive committee (herein referred to as "the local committee") of the Congregational Union or Association (whether incorporated or no) of the county in which the said trust premises are situate (or of that county and any other county or counties which may together then form one local Congregational Union or Association) shall direct and if there shall be no such committee in existence or such committee shall fail so to signify its directions within six calendar months after being requested so to do in writing by the Trustees or any two of them then as shall be directed by the council (herein-after referred to as "the central council") of the Congregational Union of England and Wales (Incorporated) in manner aforesaid Provided that such direction as aforesaid shall be sufficiently given by resolution passed at a meeting of such local committee or central council as the case may be and that such resolution shall be evidenced by a minute thereof under the hands of the chairman of the meeting and the secretary or secretaries of the committee or council and that the provisions of subclause (G) of clause 20 hereof shall apply to such minute and chairman.

Dissolution or
dispersal of
church.

15. Upon any mortgage lease sale or exchange purporting to be made in pursuance of any trust or power herein contained no mortgagee lessee purchaser or other person dealing bonâ fide with the Trustees shall be bound or concerned to inquire whether the occasion for executing or exercising such trust or power has arisen or as to whether any special or other meeting of the said church has been held or as to the competency or regularity of any such meeting or of any requisition or resolution passed or purporting to have been passed thereat or as to whether the said church has been dissolved or any of the said other events have taken place or (except as regards the said restrictions contained in the 10th and 11th clauses hereof) otherwise as to the propriety or regularity of any such mortgage lease sale or exchange and notwithstanding any impropriety or irregularity in such mortgage lease sale or exchange the same shall in favour of a purchaser mortgagee lessee or other person as aforesaid (except as regards the last-mentioned restrictions) be deemed to be within the aforesaid trusts or powers and be valid accordingly.

Protection of
mortgagees
lessees &c.

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Appointment
discharge and
retirement of
Trustees.

16. The following provisions as to the appointment of new Trustees of the charity and the discharge and retirement of Trustees thereof by way of extension and variation of the statutory provisions shall apply :—

- (A) Whenever the number of Trustees shall be reduced to five new Trustees shall be appointed and upon any new appointment the number shall if possible be made up to not less than twenty :
- (B) No person shall be appointed a Trustee who is not a member of a Congregational Church and any Trustee (other than the said George Hare Leonard Charles Goodleff and Andrew Ody) who ceases to be a member of such a church or who becomes bankrupt or remains out of the United Kingdom for more than twelve consecutive months shall ipso facto cease to be a Trustee :
- (C) A new Trustee or new Trustees may at any time be appointed in the place of any one of the Trustees who through death retirement or any other cause ceases to be a Trustee or who desires to be discharged from the trusts or who refuses or is unfit to act or is incapable of acting therein If a majority of the Trustees consisting of not less than two-thirds of the Trustees for the time being have in writing approved the execution of any deed or other assurance in this scheme referred to and such approval has also been expressed by resolution passed by a majority consisting of not less than two-thirds of the Trustees present at a meeting convened in accordance with the provisions in that behalf herein contained any Trustee who declines or who for twenty-one days after being served with a copy of such resolution neglects to execute such deed or other assurance as aforesaid shall be deemed to be a Trustee who desires to be discharged from the trusts or who is unfit to act within the meaning of this clause :
- (D) The powers of the church under the Trustee Appointment Act 1850 (commonly called Sir Morton Peto's Act) shall be exercised by special resolution of the church If the said church (while the number of its members entitled to vote at a special meeting exceeds fifteen) fails for three calendar months after written notice that the number of Trustees has been reduced to five or that it has become desirable to appoint new Trustees or a new Trustee in the place of any Trustees or Trustee having become unfit to act or desiring to be discharged has been served by any two Trustees for the time being upon the then pastor or on two of the deacons (or the deacon of the said church if only one) to exercise its powers under the said Act or if the powers of the Trustees under clause 14 hereof arise the power of appointing new Trustees shall in either of such events be vested in and become exerciseable by the local committee or in the absence of such committee by the central council for the time being

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aforesaid Any appointment by the committee or council shall be made by resolution passed at a meeting of the body in question convened for the purpose The provisions of the said Trustee Appointment Act 1850 shall be deemed to be incorporated herein and this scheme shall be deemed to be for the purposes of the Act a conveyance or instrument declaring trusts within the meaning of section 1 thereof and in either of the events aforesaid the committee or council as the case may be shall be deemed to be persons authorised to exercise the powers conferred by the Act In case the committee or council entitled so to appoint fails for three calendar months after written notice that the number of Trustees has been reduced to five has been served on the secretary for the time being of such committee or council to appoint new Trustees the statutory powers of the Trustees of appointment shall be in full force and unaffected by this scheme but save as aforesaid the Trustees shall not exercise their statutory powers of appointment:

- (E) Any one of the Trustees may when there are more than five Trustees retire from the trusts on giving two calendar months' notice in writing of his intention so to do to the then pastor and deacons or one of the deacons of the said Church (if there shall be such pastor or deacon) and to each of the other Trustees for the time being and after service of such notice such Trustee shall not be bound by any resolution of the Trustees from which he may personally dissent and upon the termination of such two months the Trustee giving the notice shall cease to be a Trustee to all intents and purposes except that he shall execute when requested so to do such assurance (if any) as may be necessary for vesting the trust property in the Trustees for the time being.

17. All the trusts powers discretions and authorities hereby given to or vested in the Trustees shall be exerciseable (save where otherwise expressed) by a majority of the Trustees consisting of not less than two-thirds of the Trustees for the time being as fully and effectually in all respects as the same might have been exercised by the whole of the Trustees As regards any sale mortgage demise or other disposition of any property vested in the Trustees (as such) the majority consisting of not less than two-thirds of the Trustees for the time being shall have and be deemed always to have had full power in the names and on behalf of the whole of the said Trustees to execute and do all such deeds assurances acts and things as may be requisite for carrying into effect any such sale mortgage demise or other disposition and all such deeds assurances acts and things shall have the same effect as if they were respectively executed and done by all the Trustees (provided such sale mortgage demise or other disposition be made pursuant to and the execution of such deeds or assurances be by such Trustee or Trustees as shall be nominated for that purpose by a

Trusts &c. to be
exerciseable by
majority of the
Trustees.

A.D. 1907. resolution of the said Trustees passed at a duly convened meeting of their body by a majority consisting of not less than two-thirds of the Trustees personally present when such resolution is voted upon).

Indemnity of
non-consenting
Trustees.

18. Nothing herein contained and no exercise by the majority of any of the trusts powers discretions or authorities aforesaid shall operate so as to impose any personal liability in consequence of such exercise on any one or more of the Trustees who individually may not have expressly consented to the action of the majority.

Meetings of
Trustees.

19. Any meeting of the Trustees hereby authorised or required shall be deemed duly convened if summoned by any two Trustees by notice in writing served upon the remaining Trustees not less than five or more than ten days before the day of the meeting so summoned such notice stating the business to be transacted at the meeting and naming a reasonable hour and a convenient place of meeting within five miles of the premises belonging to the charity.

Special meet-
ings of Church.

20. The term "a special meeting of the Church" in this scheme means a meeting convened in accordance with this clause the following provisions of which shall apply to every such meeting of the said Church:—

- (A) The meeting shall be convened by the minister or pastor or deacons or by the authority of the Trustees or of one-fifth in number of the members of the said Church entitled to vote at such meeting by notice announcing the place day and hour of the meeting and the business or matter to be transacted or considered and such notice shall be given at each service held on the premises on the two Lord's days immediately preceding such meeting:
- (B) The day of the meeting shall be not earlier than the Wednesday next following the second of such two Lord's days:
- (C) The only persons who shall be entitled to attend and vote at such meeting shall be those who whether male or female have attained the age of twenty-one years and have been members of the said Church during at least the six calendar months next preceding the meeting:
- (D) No votes shall be given by proxy but votes may be given by ballot or otherwise as the said Church may direct:
- (E) The term "a special resolution of the Church" in this scheme means a resolution passed at a special meeting of the Church by a majority consisting of not less than two-thirds of the persons present when a vote is taken on the question before the meeting and the same shall be binding upon all the members of the said Church whether present or not at such meeting:

(F) Except where a special resolution of the Church is hereby expressly required a resolution passed at a special meeting by a simple majority of the persons voting on the question before the meeting shall be binding on all the members of the said Church whether present or not at such meeting : A.D. 1907.

(G) The proceedings and resolutions of the meeting shall be evidenced by a minute thereof under the hand of the chairman who shall have a casting vote in addition to his vote as one of the persons present and such minute shall be conclusive evidence that any resolution therein expressed to have been passed was passed at a meeting duly convened and held and by the requisite majority and it shall further be presumed that the person subscribing such minute as chairman was duly appointed to the office.

21. Except where it is hereby expressly provided that a special resolution of the said Church or a resolution of a special meeting thereof is requisite the affairs of the said Church and the provisions of this scheme may in all respects be managed and carried out under the direction of the members of the said Church at ordinary meetings of the said Church to which meetings the provisions of the last preceding clause hereof shall not apply but the same shall be held and regulated and the proceedings evidenced according to the ordinary practices and usages of Congregational churches which practices and usages shall also apply to special meetings of the said Church subject to the provisions of such last preceding clause hereof. Ordinary meetings of Church.

22. Any consent direction decision appointment or other proceeding of the said Church shall be sufficiently given made or taken if authorised by resolution duly passed at a special meeting of the said Church or at an ordinary meeting if the matter be one within the powers thereof. Consents &c. of the Church to be given by resolution.

23. If in the event of the removal of the said church to another locality the powers hereby vested in the said Church in regard to the property of the charity shall continue unimpaired and unaffected for the period of eighteen calendar months from the date of such removal but after the expiration of that period and subject to any exercise by the said Church of its powers during such period the powers of the said Church with reference to the said property (including particularly but not exclusively the power of appointing new Trustees thereof) shall thenceforth be transferred to and be exerciseable by the local committee or if there is no such body then in existence by the central council subject to sub-clause (D) of clause 16 hereof. Removal of church.

24. The trusts of this scheme shall subject as herein-before set forth enure for the benefit of the pastors or ministers and deacons and members and the Chapel and Sabbath school respectively for the time being of the Church and congregations worshipping at or using any Congregational chapel or schoolroom which may hereafter from time to time be acquired. Trusts to enure for benefit of pastors members &c. of future Church and congregation.

A.D. 1907. — under the provisions of this scheme in lieu of the chapel and schoolroom now belonging to the charity or in lieu of such future chapel and schoolroom as herein-before referred to as fully as if the said trusts were in each case expressed to be for the benefit of such other person and persons respectively.

Service of requisition or notice.

25. Any requisition or notice by these presents authorised or required to be served on any person shall be deemed to have been fully served if it is sent by prepaid post in a letter addressed to such person at his last known place of abode in England.

As to personal interest of Trustees in charity.

26. No Trustee shall save with the consent of the Charity Commissioners take or hold any interest in any real or leasehold property belonging to the charity otherwise than as a Trustee for the purposes thereof and no Trustee shall save with the consent of the Church or of the deacons thereof (if authorised in that behalf by the Church) receive any remuneration or be interested in the supply of work or goods at the cost of the charity.

Alteration of scheme.

27. The Charity Commissioners may from time to time in the exercise of their ordinary jurisdiction establish schemes for the alteration of any provisions of this scheme as if those provisions had been made by the founder in the case of a charity having a founder.

FIRST SCHEDULE.

PROPERTY.

1. Property comprised in indentures of the thirteenth July one thousand eight hundred and two and first October one thousand eight hundred and fourteen as follows:—

Plots of land containing a total area of 2 r. 32 p. or thereabouts with the building formerly called Mr. Whitfield's Room (and now used as a schoolroom in connexion with the property numbered 2 in this schedule) and a dwelling-house and stable erected thereon situate at Kingswood in the county of Gloucester (the mines and minerals being excepted).

2. Property comprised in indentures of the twenty-first October one thousand eight hundred and fifty and eighth October one thousand eight hundred and fifty-nine as follows:—

Plot of land containing 1 a. 0 r. 30 p. or thereabouts and adjoining the plots of land specified in this schedule under the number 1 with the chapel and buildings now known as the Whitfield Tabernacle erected thereon (the mines and minerals being excepted).

SECOND SCHEDULE.

A.D. 1907.

DOCTRINES.

The Unity of the Godhead as Father Son and Holy Spirit.

The Incarnation Resurrection and Ascension of the Only Begotten Son of the Father in Jesus Christ who is our Propitiatory Sacrifice our Redeemer our Judge the sole Head of His Church.

The Quickening Indwelling Guiding and Sanctifying of the Holy Spirit.

The revelation of God's Grace to man and of man's duty to God in the Holy Scriptures.

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